

25STCV10829 25STCV10829

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-07

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Case Number: 25STCV10829 Hearing Date: July 7, 2026 Dept: 311

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 311

Tentative Ruling

25STCV10829

JOHN TREFRY vs CHIARA, AN INDIVIDUAL ANGELICOLA, et al.

July 7, 2026

8:30 AM

NATURE OF PROCEEDINGS: PLAINTIFF JOHN TREFRY'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES NO. 11 TO DEFENDANT ANGELICOLA FAMILY CHILD CARE AND NO. 13 TO DEFENDANT CHIARA ANGELICOLA.

RULING:

The Court grants the Motion.

The Court will sign and file the Proposed Order received on May 4, 2026.

I. BACKGROUND

On April 11, 2025, JOHN TREFRY (Plaintiff) filed a Complaint against CHIARA ANGELICOLA dba SILVERLAKE CENTER FOR CREATIVITY PRESCHOOL (Defendant), listing the following Causes of Action:

1. Defamation Per Se

2. Invasion of Privacy – False Light.

Plaintiff alleges that Defendant published defamatory statements accusing Plaintiff of sexually abusing his child, in emails and other communications, to families in the preschool community, Plaintiff's professional network, GoFundMe donors, and the public.

On May 4, 2026, Plaintiff filed the Motion to Compel Further Responses to Special Interrogatories, numbers 11 and 13, because of evasive responses and meritless discovery objections. Plaintiff also requests an Order requiring Defendants and/or counsel to pay \$10,395.00 as sanctions, including for meeting and conferring.

Defendants advocate denial, or granting either without, or with reduced, sanctions. Defendants reason that the witness identities are private, irrelevant to defamation elements, and are already known from having emails.

II. LEGAL STANDARD

A propounding party's remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127.) If interrogatory responses lack specificity, then parties may move to compel further responses under Code of Civil Procedure section 2030.300, subdivision (a), providing for motions to compel, where parties deem that an answer is evasive, incomplete, or inadequate as to specification of documents. (Best Products, Inc. v. Superior Court (2004) 119 Cal.App.4th 1181, 1190.) "While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Monetary discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) "[T]he phrase 'substantial justification' has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact." (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) "If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with 'substantial justification.'" (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may award sanctions for attorneys' fees and expenses incurred as a result of misuse of the discovery process, which may include more than bringing the motion, such as meeting and conferring. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1299.) "The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions." (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal.App.5th 771, 789.)

III. ANALYSIS

In the Separate Statement, Plaintiff specifies arguments about each discovery objection lacking merit, such that code-compliant responses are required.

Defendants respond with the following points:

1. Parents of school children as well as the school children themselves are guaranteed a right of privacy under the California constitution.
2. Parents' thoughts or impressions about the emails sent by Defendants are irrelevant to claim elements.
3. Plaintiff already has the emails at issue, revealing the contact information.
4. The responses are sufficient.
5. Plaintiff's outrageous sanctions request of \$10,395 is to scare Defendants away from asserting the third-party privacy rights related to schooling.

First, the Court concludes that routine witness contact information is discoverable without any material privacy concerns.

"[W]hen the court concludes that there is no serious invasion of privacy no balance of opposing interests is required." (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1256.) Disclosure of addresses and telephone numbers does not amount to a serious invasion of privacy rights. (Belaire-West Landscape, Inc. v. Superior Court (2007) 149 Cal.App.4th 544, 561.) Analogously, Form Interrogatories approved by the Judicial Council entail fundamentally routine discovery of witness contact information. (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1250.)

Second, the Court finds that discovery from alleged recipients of defamation is reasonably calculated to lead to the discovery of admissible evidence.

" 'An order compelling discovery must rest on a showing that the discovery is reasonably calculated to lead to admissible evidence....' " (Cadiz Land Co. v. Rail Cycle (2000) 83 Cal.App.4th 74, 117.) The elements of the Cause of Action for Defamation include perception of the statements. (See, e.g., Campanelli v. Regents of the Univ. of Cal. (1996) 44 Cal.App.4th 572, 578 [determination whether alleged defamation is fact or opinion can depend on whether statement reasonably could be construed either as fact or opinion, in which case, the issue should be resolved by a jury]; Krinsky v. Doe 6 (2008) 159 Cal.App.4th 1154, 1175 [comments impliedly based upon undisclosed facts, may constitute actionable assertions of fact and not pure opinion]; McGarry v. Univ. Of San Diego (2007) 154 Cal.App.4th 97, 112 [statements that charge directly without a need for explanation are libelous per se]; Palm Springs Tennis Club v. Rangel (1999) 73 Cal.App.4th 1, 7 [pleading defamation per quod requires alleging that people had special knowledge of facts from which they could discern that statements were defamatory].)

Third, whether a party already has requested information is not determinative, unless it is unreasonably duplicative or unduly burdensome. Here, providing requested contact information could be easily accomplished and would not be undue burden.

Discovery is allowed even if it is duplicative of other information already obtained. (Tbg Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448; Carter v. Superior Court (1990) 218 Cal.App.3d 994, 997 [allowing demands for documents and depositions notices requesting documents].) "A party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, a proper basis for refusing to provide discovery under another method." (Irvington-Moore, Inc. v. Superior Court (1993) 14 Cal.App.4th 733, 739. Accord, Bunnell v. Superior Court (1967) 254 Cal.App.2d 720, 723 ["plaintiff could not refuse to answer merely on the claim that the requested information had been given in previous depositions...."].) "The use of ... interrogatories is in addition to and exclusive of the right to take the deposition of the same party, and either procedure may be resorted to before or after the other." (Greyhound Corp. v. Superior Court (1961) 56 Cal.2d 355, 373, superseded by statute on other grounds as stated in Dowden v. Superior Court (1999) 73 Cal.App.4th 126, 132.) Courts have discretion to prohibit discovery if it is unreasonably duplicative or unduly burdensome. (E.g., Code Civ. Proc., § 2019.030, subd. (a); City of King City v. Community Bank of Central California (2005) 131 Cal.App.4th 913, 933; Emerson Elec. Co. v. Superior Court (1997) 16 Cal.4th 1101, 1110.) Courts should control undue burden placed upon parties in requests for discovery, including where the information is equally available to both parties.

(Calcor Space Facility v. Superior Court (1997) 53 Cal.App.4th 216, 225.)

Fourth, the responses quoted in the Separate Statement clearly do not comply with statutory requirements.

A document response must consist of: 1) An agreement to comply, stating whether the productions or inspection will be allowed “in whole or in part,” and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a specification of any person believed or known to have possession of documents; or, 3) objections and specification of withheld documents. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.220, 2031.270, 2031.280.) Compliance includes all documents or things in the demanded category that are in the “possession, custody, or control” of the responding party, such as from other corporations. (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813 [quoting Code Civ. Proc., § 2031.220].) With regard to document requests, a response expressing an inability to comply shall state that a diligent search and reasonable inquiry was made to locate the items, and the reason for an inability to comply, including that the item never existed, was lost or stolen, was destroyed, or is not in respondent’s possession, along with the identity and address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.) “Even where a party deems a demand to be objectionable, he [she, or it] still must identify those items which fall into the category of item in the demand to which an objection is being made.” (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 901, fn.3.)

“[I]f documents responsive to a document request are withheld on privilege grounds, a privilege log or some equivalent specification of any asserted privilege objection ‘shall’ be supplied.” (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813.)

Ambiguity objections as to discovery are overruled unless requests are unintelligible. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444. Cf. Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 901 [ambiguity objection deemed a nuisance objection as to request for any medical bills or expense documentation]; Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1286 [“the term was, therefore, ambiguous. This contention is preposterous in the circumstances presented.”]; Cembrook v. Superior Court (1961) 56 Cal.2d 423, 430 [“the trial court erred in sustaining its objections to the requests, in toto. Some of the requests are obviously ... void of ambiguity.”].)

No objectionable premature disclosure of expert opinion necessarily occurs before the retaining of experts. (See Schreiber v. Est. of Kiser (1999) 22 Cal.4th 31, 39 [“may testify as to any opinions formed on the basis of facts independently acquired and informed by his training, skill, and experience.”].)

Objecting parties must file evidence detailing the amount of work involved, in order to support objections based upon burden and oppression. (West Pico Furniture Co. v. Superior Court (1961) 56 Cal.2d 407, 417.)

Fifth, the Court finds that the Motion supports the amount of sanctions, including for substantial meeting and conferring unsuccessfully, whereas the Opposition does not meet the burden to specify unreasonable amounts.

Monetary discovery sanctions must be reasonable in amount. (Ghanooni v. Super Shuttle of Los Angeles (1993) 20 Cal.App.4th 256, 262.) Discovery sanctions must be based on evidence sufficient to support findings that the amount is reasonable and incurred as a result of misuses of the discovery process. (Dep’t of Forestry & Fire Prot. v. Howell (2017) 18 Cal.App.5th 154, 195, disapproved of on other grounds by Presbyterian Camp & Conf. Centers, Inc. v. Superior Court (2021) 12 Cal.5th 493, 500; In re Marriage of Niklas (1989) 211 Cal.App.3d 28, 38–39. See also Code Civ. Proc., § 2023.040 [“The notice of motion shall be ... accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.”].)

“ ‘In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.’ ” (Lunada Biomedical v. Nunez (2014) 230

Cal.App.4th 459, 488. Accord, *Etcheson v. FCA US LLC* (2018) 30 Cal.App.5th 831, 848.) Parties opposing motions for attorneys' fees fail to show any abuse of discretion where they merely contend that amounts of attorneys' fees are excessive without providing a specific analysis or factual support. (E.g., *Mallard v. Progressive Choice Ins. Co.* (2010) 188 Cal.App.4th 531, 545; *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1376 [an "'assertion [that] is unaccompanied by any citation to the record or any explanation of which fees were unreasonable or duplicative' is insufficient to disturb the trial court's discretionary award of attorney fees."].)

IV. CONCLUSION

Therefore, the Court grants the Motion, as prayed.

Plaintiff to give notice.